

Federal Constitution

NOTES

Art. 125

Clause (1)

- a. Act 14/1962, section 32, in force from 21-06-1962, substituted the words “the provisions of Clauses (2) to (5)” for the words “the following provisions of this Article”.
- b. Act 26/1963, paragraph 22(2)(a), in force from 16-09-1963, substituted the words “Federal Court” for the words “Supreme Court”.
- c. Subsequently, the word “Supreme” substituted for the word “Federal” by Act A566, subsection 16(1), in force from 01-01-1985.
- d. The word “Federal” substituted for the word “Supreme” by Act A885, paragraph 21(a), in force from 24-06-1994.
- e. The words “sixty-six years” substituted for the words “sixty-five years” by Act A1239, section 3, in force from 21-03-2005.

Clause (2)

- a. The words “Federal Court” substituted for the words “Supreme Court” by Act 26/1963, paragraph 22(2)(a), in force from 16-09-1963.
- b. Subsequently, the word “Supreme” substituted for the word “Federal” by Act A566, subsection 16(1), in force from 01-01-1985.
- c. The word “Federal” substituted for the word “Supreme” by Act A885, paragraph 21(a), in force from 24-06-1994.

Clause (3)

- a. The words “Lord President” and “Federal Court” substituted for the words “Chief Justice” and “Supreme Court” respectively by Act 26/1963, paragraph 22(2)(a), in force from 16-09-1963. Subsequently, the word “Supreme” substituted for the word “Federal” by Act A566, subsection 16(1), in force from 01-01-1985.
- b. *See* Art. 65(3).
- c. The words “Chief Justice” and “Federal” substituted respectively for the words “Lord President” and “Supreme” by Act A885, subparagraph 21(b)(i), in force from 24-06-1994.
- d. The words “any breach of any provision of the code of ethics prescribed under Clause (3A) or on the ground” substituted for the words “misbehavior or” by Act A885, subparagraph 21(b)(ii), in force from 24-06-1994.
- e. The words “Clause (3B)” substituted for the words “Clause (3A)” by Act A1260, paragraph 5(a), in force from 19-01-2006.

Clause (3A)

- a. Inserted by Act A885, paragraph 21(c), in force from 24-06-1994.
- b. Substituted by Act A1260, paragraph 5(b), in force from 19-01-2006. The original Clause read as follows:

“(3A) The Yang di-Pertuan Agong on the recommendation of the Chief Justice, the President of the Court of Appeal and the Chief Judges of the High Courts, may, after consulting the Prime Minister, prescribe in writing a code of ethics which shall be observed by every judge of the Federal Court.”.

Clauses (3B) & (3C): Inserted by Act A1260, paragraph 5(c), in force from 19-01-2006.

Clause (4)

- a. The words “appointed on the recommendation of the Judicial and Legal Service Commission, being persons” which appeared after the words “not less than five persons” were deleted and the words “Yang di-Pertuan Agong expedient to make such appointment” substituted for the words “Commission expedient so to recommend” by Act 10/1960, paragraphs 16(a) and (b), in force from 31-05-1960.
- b. The words “and shall be presided over by the member first in the following order, namely, the Lord President of the Federal Court, the Chief Justices according to their precedence among themselves, and other members according to the order of their appointment to an office qualifying them for membership (the older coming before the younger of two members with appointments of the same date)” at the end substituted for the words “and shall be presided over by the Chief Justice, if he is a member, and, in any other case, by the person first appointed to the said office” by Act 26/1963, paragraph 22(2)(b), in force from 16-09-1963, which also inserted the words “of the Federal Court or a High Court or have before Malaysia Day held office as judge” which appear after the words “or have held office as judge”.

(4) The tribunal appointed under Clause (3) shall consist of not less than five persons who hold or have held office as judge of the Federal Court, the Court of Appeal or a High Court, or, if it appears to the Yang di-Pertuan Agong expedient to make such appointment, persons who hold or have held equivalent office in any other part of the Commonwealth, and shall be presided over by the member first in the following order, namely, the Chief Justice of the Federal Court, the President and the Chief Judges according to their precedence among themselves, and other members according to the order of their appointment to an office qualifying them for membership (the older coming before the younger of two members with appointments of the same date).

(5) Pending any reference and report under Clause (3) the Yang di-Pertuan Agong may on the recommendation of the Prime Minister and, in the case of any other judge after consulting the Chief Justice, suspend a judge of the Federal Court from the exercise of his functions.

(6) Parliament shall by law provide for the remuneration of the judges of the Federal Court, and the remuneration so provided shall be charged on the Consolidated Fund.

(6A) Subject to the provisions of this Article, Parliament may by law provide for the terms of office of the judges of the Federal Court other than their remuneration.

(7) The remuneration and other terms of office (including pension rights) of a judge of the Federal Court shall not be altered to his disadvantage after his appointment.

(8) Notwithstanding Clause (1), the validity of anything done by a judge of the Federal Court shall not be questioned on the ground that he had attained the age at which he was required to retire.

(9) This Article shall apply to a judge of the Court of Appeal and to a judge of a High Court as it applies to a judge of the Federal Court, except that the Yang di-Pertuan Agong before suspending under Clause (5) a judge of the Court of Appeal or a judge of a High Court other than the President of the Court of Appeal or the Chief Judge of a High Court shall consult the President of the Court of Appeal or the Chief Judge of that High Court instead of the Chief Justice of the Federal Court.

Federal Constitution

NOTES

Art. 125—(cont.)

- c. The words “, or have before Malaysia Day held office as judge of the Supreme Court” were deleted by Act A566, subsection 16(3), in force from 01-01-1985.
- d. The words “Federal Court, the Court of Appeal” substituted for the words “Supreme Court” by Act A885, subparagraph 22(d)(i), in force from 24-06-1994.
- e. The words “Chief Justice of the Federal Court, the President and the Chief Judges” substituted for the words “Lord President of the Supreme Court, the Chief Justices” by Act A885, subparagraph 21(d)(ii), in force from 24-06-1994.
- f. The words “The tribunal appointed under Clause (3)” substituted for the words “The said tribunal” by Act A1260, paragraph 5(d), in force from 19-01-2006.

Clause (5)

- a. The words “Prime Minister, or the Prime Minister after consulting the Chief Justice,” substituted for the words “Judicial and Legal Service Commission” by Act 10/1960, paragraph 16(c), in force from 31-05-1960.
- b. Act 26/1963, paragraph 22(2)(a), in force from 16-09-1963, substituted the words “Lord President” and “Federal Court” for the words “Chief Justice” and “Supreme Court” respectively and by paragraph 22(2)(c) substituted the words “and, in the case of any other judge” for the words “or the Prime Minister”.
- c. The word “Supreme” substituted for the word “Federal” by Act A566, subsection 16(1), in force from 01-01-1985.
- d. The words “Chief Justice” substituted for the words “Lord President” by Act A885, paragraph 21(e), in force from 24-6-1994.

Clause (6)

- a. The words “Federal Court” substituted for the words “Supreme Court” by Act 26/1963, paragraph 22(2)(a), in force from 16-09-1963.
- b. The word “Supreme” substituted for the word “Federal” by Act A566, subsection 16(1), in force from 01-01-1985.
- c. *See* Judges’ Remuneration Act 1971 [Act 45].

Clause (6A)

- a. Added by Act 14/1962, section 23, in force from 21-06-1962.
- b. The words “Federal Court” substituted for the words “Supreme Court” by Act 26/1963, paragraph 22(2)(a), in force from 16-09-1963.
- c. The word “Supreme” substituted for the word “Federal” by Act A566, subsection 16(1), in force from 01-01-1985.

Clauses (7) & (8)

- a. The words “Federal Court” substituted for the words “Supreme Court” by Act 26/1963, paragraph 22(2)(a), in force from 16-09-1963.
- b. The word “Supreme” substituted for the word “Federal” by Act A566, subsection 16(1), in force from 01-01-1985.

Clause (9)

- a. Added by Act 26/1963, subsection 22(3), in force from 16-09-1963.
- b. Substituted by Act A885, paragraph 21(g), in force from 24-06-1994. The original Clause read as follows:

“(9) This Article shall apply to a judge of a High Court as it applies to a judge of the Supreme Court, except that the Yang di-Pertuan Agong before suspending under Clause (5) a judge of a High Court other than the Chief Justice shall consult the Chief Justice of that Court instead of the Lord President of the Supreme Court.”.

Clause (10)

- a. Added by Act 59/1966, section 2, in force from 19-09-1966, and deleted by Act A31, section 4, in force from 19-09-1966. The Clause read as follows:
“(10) A judge of the High Court who is appointed to be a judge of the Federal Court shall cease to be a judge of the said High Court:

(10) The President of the Court of Appeal and the Chief Judges of the High Courts shall be responsible to the Chief Justice of the Federal Court.

Exercise of powers by judges

125A. (1) Notwithstanding anything contained in this Constitution, it is hereby declared that—

- (a) the Chief Justice of the Federal Court and a judge of the Federal Court may exercise all or any of the powers of a judge of the Court of Appeal and of a judge of a High Court;
- (aa) the President of the Court of Appeal and a judge of the Court of Appeal may exercise all or any of the powers of a judge of a High Court; and
- (b) a judge of the High Court in Malaya may exercise all or any of the powers of a judge of the High Court in Sabah and Sarawak, and *vice versa*.

(2) The provisions of this Article shall be deemed to have been an integral part of this Constitution as from Malaysia Day.

Power to punish for contempt

126. The Federal Court, the Court of Appeal or a High Court shall have power to punish any contempt of itself.

Restriction on Parliamentary discussion of conduct of judge

127. The conduct of a judge of the Federal Court, the Court of Appeal or a High Court shall not be discussed in either House of Parliament except on a substantive motion of which notice has been given by not less than one quarter of the total number of members of that House, and shall not be discussed in the Legislative Assembly of any State.

Federal Constitution

NOTES

Art. 125—(cont.)

Provided that any such judge of a High Court who is so appointed shall continue to be a judge of such High Court for the purpose only of giving judgment in any case tried by him prior to his appointment as a judge of the Federal Court.”.

b. Inserted by Act A885, paragraph 21(h), in force from 24-06-1994.

Clauses (1), (2), (3), (4), (5), (6), (6A), (7) & (8)

The word “Federal” substituted for the word “Supreme” by Act A885, section 21, in force from 24-06-1994.

Art. 125A

1. The present Article was inserted by Act A354, section 28, in force from 16-09-1963.
2. The word “Supreme” substituted for the word “Federal” by Act A566, subsection 16(1), in force from 01-01-1985.
3. The words “Exercise of powers by judges” substituted for the shoulder note by Act A885, paragraph 22(a), in force from 24-06-1994.
4. Paragraph (a) of Clause (1) was substituted by Act A885, subparagraph 22(b)(i), in force from 24-06-1994. The original paragraph (a) read as follows:

“(a) the Lord President of the Supreme Court and a judge of the Supreme Court may exercise all or any of the powers of a judge of a High Court; and”.
5. Paragraph (aa) of Clause (1) was added by Act A885, subparagraph 22(b)(ii), in force from 24-06-1994.
6. In paragraph (b) of Clause (1), the words “Sabah and Sarawak” substituted for the word “Borneo” by Act A885, subparagraph 22(b)(iii), in force from 24-06-1994.

Art. 126

1. The words “Federal Court or a High Court” substituted for the words “Supreme Court” by Act 26/1963, subsection 22(4), in force from 16-09-1963.
2. The word “Supreme” substituted for the word “Federal” by Act A566, subsection 16(1), in force from 01-01-1985.
3. The words “Power to punish for contempt” substituted for the shoulder note and the words “Federal Court, the Court of Appeal” substituted for the words “Supreme Court” by Act A885, section 23, in force from 24-06-1994.

Art. 127

1. The words “Federal Court or a High Court” substituted for the words “Supreme Court” by Act 26/1963, subsection 22(4), in force from 16-09-1963.
2. The word “Supreme” substituted for the word “Federal” by Act A566, subsection 16(1), in force from 01-01-1985.
3. The words “Federal Court, the Court of Appeal” substituted for the words “Supreme Court” by Act A885, section 24, in force from 24-06-1994.

Jurisdiction of Federal Court

128. (1) The Federal Court shall, to the exclusion of any other court, have jurisdiction to determine in accordance with any rules of court regulating the exercise of such jurisdiction—

- (a) any question whether a law made by Parliament or by the Legislature of a State is invalid on the ground that it makes provision with respect to a matter with respect to which Parliament or, as the case may be, the Legislature of the State has no power to make laws; and
- (b) disputes on any other question between States or between the Federation and any State.

(2) Without prejudice to any appellate jurisdiction of the Federal Court, where in any proceedings before another court a question arises as to the effect of any provision of this Constitution, the Federal Court shall have jurisdiction (subject to any rules of court regulating the exercise of that jurisdiction) to determine the question and remit the case to the other court to be disposed of in accordance with the determination.

(3) The jurisdiction of the Federal Court to determine appeals from the Court of Appeal, a High Court or a judge thereof shall be such as may be provided by federal law.

129. (*Repealed*).

Advisory jurisdiction of Federal Court

130. The Yang di-Pertuan Agong may refer to the Federal Court for its opinion any question as to the effect of any provision of this Constitution which has arisen or appears to him likely to arise, and the Federal Court shall pronounce in open court its opinion on any question so referred to it.

131. (*Repealed*).

Provision for incapacity, etc., of Chief Justice, President or Chief Judge

131A. (1) Any provision made by federal law for the functions of the Chief Justice of the Federal Court or the President of

Federal Constitution

NOTES

Art. 128

1. The present Article was substituted by Act 26/1963, section 14, in force from 16-09-1963, and replaced the earlier Article which read as follows:

“128. (1) The Supreme Court shall have such original, appellate and revisional jurisdiction as may be provided by federal law.

(2) The Supreme Court shall, to the exclusion of any other court, have jurisdiction in any dispute between States or between the Federation and any State.”.

2. *See* Art. 121(2)(b).

Clause (1)

The words “in accordance with any rules of court regulating the exercise of such jurisdiction” were inserted after the word “determine” by Act A354, section 29, in force from 27-08-1976.

Clause (2): See Art. 161(4) & 161B(2)

3. The word “Supreme” substituted for the word “Federal” by Act A566, subsection 16(1), in force from 01-01-1985.

Clauses (1) & (2)

The word “Federal” substituted for the word “Supreme” by Act A885, paragraph 25(a), in force from 24-06-1994.

Clause (3)

Substituted by Act A885, paragraph 25(b), in force from 24-06-1994. The original Clause (3) read as follows:

“(3) The jurisdiction of the Supreme Court to determine appeals from a High Court or a judge thereof shall be such as may be provided by federal law.”.

Art. 129

This Article which read as follows was repealed by Act 26/1963, section 14, in force from 16-09-1963:

“129. Without prejudice to any appellate or revisional jurisdiction of the Supreme Court, where in any proceedings before another court a question arises as to the effect of any provision of this Constitution, the Supreme Court may, on the application of either party to the proceedings, determine that question and either dispose of the case or remit it to the other court to be disposed of in accordance with the determination.”.

Art. 130

1. The words “Federal Court” substituted for the words “Supreme Court” by Act 26/1963, subsection 22(5), in force from 16-09-1963.

2. Subsequently the word “Supreme” substituted for the word “Federal” by Act A566, subsection 16(1), in force from 01-01-1985.

3. *See* Art. 121(2)(b).

4. The word “Federal” substituted for the word “Supreme” by Act A885, section 26, in force from 24-06-1994.

Art. 131

Clause (1)

a. Act 25/1963, section 8, in force from 29-08-1963, deleted the words “or by Clause (2)” which appeared after the words “allowed by federal law”.

b. Act 26/1963, subsection 22(6), in force from 16-09-1963, substituted the words “Federal Court” for the words “Supreme Court”.

the Court of Appeal or the Chief Judge of a High Court to be performed, in the event of a vacancy in the office or of his inability to act, by a judge of the Federal Court may extend to his functions under this Constitution.

(2) Any provision made by federal law for the functions of the President of the Court of Appeal or the Chief Judge of a High Court to be performed, in the event of a vacancy in the office or of his inability to act, by another judge of the Court of Appeal or the High Court, as the case may be, may extend to his functions under this Constitution other than functions as judge of the Federal Court.

PART X

PUBLIC SERVICES

Public services

132. (1) For the purposes of this Constitution, the public services are—

- (a) the armed forces;
- (b) the judicial and legal service;
- (c) the general public service of the Federation;
- (d) the police force;
- (e) (*Repealed*);
- (f) the joint public services mentioned in Article 133;
- (g) the public service of each State; and
- (h) the education service.

(2) Except as otherwise expressly provided by this Constitution, the qualifications for appointment and conditions of service of persons in the public services other than those mentioned in paragraph (g) of Clause (1) may be regulated by federal law and, subject to the provisions of any such law, by the Yang di-Pertuan Agong; and the qualifications for appointment and conditions of service of persons in the public service of any State may be regulated by State law and, subject to the provisions of any such law, by the Ruler or Yang di-Pertua Negeri of that State.

Federal Constitution

NOTES

Art. 131—(cont.)

Clause (2)

This Clause was repealed by Act 25/1963, section 8, in force from 29-08-1963 and read as follows:

“(2) Until Parliament otherwise provides, an appeal is allowed under this Article in the following cases, that is to say:

- (a) in the case of any decision from which an appeal from the Supreme Court of the Federation would have been entertained by Her Majesty in Council (with or without special leave) immediately before Merdeka Day; and
- (b) in the case of any decision as to the effect of any provision of this Constitution, including any opinion pronounced on a reference under Article 130.”.

Clauses (1), (3) & (4)

Subsequently, these Clauses (1), (3) and (4) were repealed by Act A566, section 17, in force from 01-01-1985. The Clauses read as follows:

“(1) The Yang di-Pertuan Agong may make arrangements with Her Majesty for the reference to the Judicial Committee of Her Majesty’s Privy Council of appeals from the Federal Court; and, subject to the provisions of this Article, an appeal shall lie from that Court to the Yang di-Pertuan Agong in any case in which such an appeal is allowed by federal law, and in respect of which provision for reference to the said Committee is made by or under the enactments regulating the proceedings of the said Committee.

(3) Any appeal under this Article shall be subject to such conditions as to leave or otherwise as may be prescribed by federal law or by or under the enactments regulating the proceedings of the Judicial Committee of Her Majesty’s Privy Council.

(4) On receiving from Her Majesty’s Government in the United Kingdom the report or recommendation of the said Committee in respect of an appeal under this Article, the Yang di-Pertuan Agong shall make such order as may be necessary to give effect thereto.”.

See—

- i. G.N. 1254/1958;
- ii. L.N. 30/1964; and
- iii. Courts of Judicature Act [*Act 91*], sections 74 to 79.

Art. 131A

1. Added by Act 26/1963, section 21, in force from 16-09-1963.
2. The word “Supreme” substituted for the word “Federal” by Act A566, subsection 16(1), in force from 01-01-1985.
3. In the shoulder note, the words “Chief Justice, President or Chief Judge” substituted for the words “Lord President or Chief Justice” by Act A885, paragraph 27(a), in force from 24-06-1994.

Clause (1)

The words “Chief Justice of the Federal Court or the President of the Court of Appeal or the Chief Judge of a High Court”, “a” and “Federal” substituted respectively for the words “Lords President of the Supreme Court”, “another” and “Supreme” by Act A885, paragraph 27(b), in force from 24-06-1994.

Clause (2)

The words “President of the Court of Appeal or the Chief Judge”, “the Court of Appeal or the High Court, as the case may be” and “Federal” substituted respectively for the words “Chief Justice”, “that Court” and “Supreme” by Act A885, paragraph 27(c), in force from 24-06-1994.

(2A) Except as expressly provided by this Constitution, every person who is a member of any of the services mentioned in paragraphs (a), (b), (c), (d), (f) and (h) of Clause (1) holds office during the pleasure of the Yang di-Pertuan Agong, and, except as expressly provided by the Constitution of the State, every person who is a member of the public service of a State holds office during the pleasure of the Ruler or Yang di-Pertua Negeri.

(3) The public service shall not be taken to comprise—

- (a) the office of any member of the administration in the Federation or a State; or
- (b) the office of President, Speaker, Deputy President, Deputy Speaker or member of either House of Parliament or of the Legislative Assembly of a State; or
- (c) the office of judge of the Federal Court, the Court of Appeal or a High Court; or
- (d) the office of member of any Commission or Council established by this Constitution or any corresponding Commission or Council established by the Constitution of a State; or
- (e) such diplomatic posts as the Yang di-Pertuan Agong may by order prescribe, being posts which but for the order would be posts in the general public service of the Federation.

(4) References in this Part, except in Articles 136 and 147, to persons in the public service or to members of any of the public services shall not apply to—

- (a) (*Repealed*);
- (b) the Attorney General or, if provision for the manner of his appointment and removal from office is specifically included in the Constitution of the State, or if he is appointed otherwise than from among the members of the judicial and legal service or of the public service of the State, the legal adviser of any State; or
- (c) a member of the personal staff of the Yang di-Pertuan Agong or of a Ruler or Yang di-Pertua Negeri; or
- (d) in the case of Malacca and Penang, if provision is made by State law for their appointment—
 - (i) the President of the Religious Affairs Department;